Chhattisgarh Rent Control Act, 2011

CHHATTISGARH
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Act 19 of 2012

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Chhattisgarh Rent Control Act, 2011(Act No. 19 of 2012)Last Updated 6th November, 2019[Dated 06.11.2012]An Act to provide for adjudication of matters relating to rent by a Tribunal and to promote leasing of accommodation by balancing the interests of landlords and tenants.Be it enacted by the Chhattisgarh Legislature in the Sixty-second Year of the Republic of India, as follows :-

1. Short title, extent and commencement.

(1)This Act may be called the Chhattisgarh Rent Control Act, 2011.(2)It shall extent in first instance to such of the Municipal areas which are comprising the District Headquarters in the State and later on to such of the other Municipal areas or any areas within the State as the State Government may, by Notification in the Official Gazette, specify from time to time.(3)It shall come into force from the date of its publication in the Official Gazette.

2. Definitions.

- In this Act, unless the context otherwise requires,-(1)"Accommodation" means any building or part of a building, whether residential or non-residential, leased out by the landlord to the tenant and includes open space, staircase, grounds, garden, garage and all facilities and amenities forming part of the agreement between them of any land which is not being used for agricultural purposes;(2)"Agreement" means the written agreement executed by the landlord and the tenant as required under this Act;(3)"District" means the district as construed in Chhattisgarh Land Revenue Code, 1959;(4)"Habitual Defaulter" means a tenant who fails in a period of 12 months on three or more occasions to pay in full the rent and all dues to the landlord on the due date in accordance with the agreement;(5)"Landlord" means a person who for the time being is receiving or is entitled to receive, the rent of any accommodation, whether on his own account or on account of or on behalf of or for the benefit of any other person or as a trustee, guardian or receiver for any other person or who would so receive the rent or to be entitled to receive the rent, if the accommodations were let to a tenant;(6)"Municipal area" means the Municipal area or Nagar Panchayat area as defined under

Chhattisgarh Municipal Corporation Act, 1956 (No. 23 of 1956) of Chhattisgarh Municipalities Act, 1961 (No. 37 of 1961), as the case may be;(7)"Notification" refers to the relevant notification of the Government as published in the Official Gazette;(8)"Old Act" means the Chhattisgarh Accommodation Control Act, 1961 (No. XLI of 1961) with all amending acts;(9)"Rent" means the consideration payable by the tenant to the landlord against an accommodation;(10)"Rent Controller" means the official so appointed under sub-section (1) of Section 7 of the Act;(11)"Rent Control Tribunal" means the body constituted under Section 6 (1) of the Act;(12)"Repealed Act" refers to Chhattisgarh Accommodation Control Act, 1961 (No. XLI of 1961) with all amending acts up to the date of selective repeal vide Section 10 (1) of this Act;(13)"Social Nuisance" means a tenant who frequently uses the accommodation to commit any or all of the acts listed in Serial No. 10 of the Schedule 4;(14)"Tenant" means-(i)the person by whom or on whose account or behalf rent is, or but for, a contract express or implied, would be payable for any accommodation to his landlord including the person who is continuing its possession after the termination of his tenancy otherwise than by an order or decree for eviction passed under the provisions of this Act; and(ii)in the event of death of the person referred to in sub-clause (i)-(a)in case of accommodation let out for residential purposes, his surviving spouse, son, daughter, mother and father who had been ordinarily residing with him in such accommodation as member of his family up to his death;(b)in case of accommodation let out for commercial or business purposes, his surviving spouse, son, daughter, mother and father who had been ordinarily carrying on business with him in such accommodation as member of his family up to his death.

3. Exemptions.

- Nothing in this Act shall apply to-(1)Any accommodation belonging to or owned by any department of Government and/or Board and/or Corporation promoted by and/or owned by the Government.(2)Any other building and/or category of building(s) specifically exempted in public interest by the Government through notification.

4. Tenancy Agreement.

(1)Notwithstanding anything contained in Section 107 of the Transfer of Property Act, 1882 (Central Act 4 of 1882), no person shall, after the commencement of this Act, let or take on rent any accommodation except by an agreement in writing.(2)Where, in relation to a tenancy created before the commencement of this Act,-(a)an agreement in writing was already entered into shall be filed before the Rent Controller.(b)no agreement in writing was entered into, the landlord and the tenant shall enter into an agreement in writing with regard to that tenancy and file the same before the Rent Controller;Provided that where the landlord and the tenant fail to present jointly a copy of tenancy agreement under clause (a) or fail to reach an agreement under clause (b) such landlord and the tenant shall separately file the particulars about such tenancy.(3)Every agreement referred to in sub-section (1) or required to be executed under sub-section (2) shall be in such format and in such manner and within such period as may be prescribed.

5. Rent to be as agreed.

(1)The rent payable for any accommodation shall, subject to other provisions of this Act, be such as may be agreed upon between the landlord and the tenant and it shall not include the charges payable for amenities which may be agreed upon separately; and shall be payable accordingly.(2)Unless agreed otherwise every tenant shall pay the rent by the fifteenth day of the month next following the month for which the rent is payable.

6. Constitution of the Rent Control Tribunal.

(1)The State Government shall by notification constitute, within thirty days of this Act, a Tribunal in terms of Article 323-B of the Constitution, to be called as Chhattisgarh Rent Control Tribunal, to give effect to the provisions of this Act, and for the adjudication or trial of any disputes, complaints, or offences with respect to rent, its regulation and control and tenancy issues including the rights, title and obligations of landlords and tenants.Explanation. - Matters relating to transfer of property and/or disputes regarding title over any property shall continue to be considered under relevant laws by the courts of law.(2)[The State Government shall appoint the Chairman of the Rent Control Tribunal, a retired Judge of the High Court or serving or retired District Judge not below the rank of Super Time Scale.(3)The Tribunal shall have such members with such qualification, as the State Government may prescribe.(4)The State Government shall appoint an officer as the Registrar of the Tribunal, who shall not be below the cadre of Civil Judge Class-I or the rank of Deputy Secretary to the State Government.] [Substituted by C.G. Act No. 3 of 2015, dated 31.12.2014.](5)From the date, the Tribunal becomes functional, which date shall be published in the State Gazette, the jurisdiction of all courts, except the jurisdiction of the Supreme Court under Article 136 [and High Courts under Articles 226 and 227] [Inserted by C.G. Act No. 5 of 2016, dated 14.1.2016.] of the Constitution, shall stand excluded in respect of all matters falling within the jurisdiction of the Tribunal :Provided, however, that all cases pending before any court or authority immediately before the establishment of the Tribunal, shall continue to be processed under the old Act, as amended from time to time.(6)[The Tribunal shall have its headquarters at Raipur and the State Government may, by notification, fix such other places for hearing of matters by the Tribunal, as it deems fit.(7)The terms and conditions of the service of the Chairman and members of the Tribunal shall be such as may be prescribed by the State Government.] [Added by C.G. Act No. 3 of 2015, dated 31.12.2014.]

7. Establishment of Rent Controller.

(1)For every district, the State Government shall appoint one or more officers not below the rank of a Deputy Collector, as Rent Controller with territorial jurisdiction as to be specified by the District Collector.(2)Rent Controller shall be subordinate to the Rent Control Tribunal.

8. Powers and functions of Rent Control Tribunal.

(1)The Rent Control Tribunal, shall have such powers as the Government may by notification vest in it, which shall include the following :-(a)Enabling and ensuring the active existence of Rent

Controller(s) at all times for due fulfillment of the purposes of this Act.(b)Functioning as Appellate Authority, to consider applications of all person(s) aggrieved by any order of the Rent Controller.Explanation. - The Rent Control Tribunal shall exercise such powers as was exercised by the High Court in adjudicating matters under the repealed Act.(2)The Rent Control Tribunal shall have powers to punish for contempt of its authority, as if it were a High Court.

9. Powers and functions of Rent Controller.

(1)The Rent Controller shall exercise such powers, perform such functions and discharge such responsibilities within its territorial jurisdiction, as the Government may by notification vest in him, which shall include the following :-(a)Reconciling dispute(s) between landlord and tenant.(b)Securing the rights of landlords and tenants as available to them under this Act.(c)Enforcing the obligations enjoyed upon landlords and tenants under this Act.(2)All proceedings before the Rent Controller shall ordinarily conclude within six months from the date of first appearance of the respondent in response to the summons issued for his appearance in the case or from the date on which the respondent is set ex-parte.

10. Procedure to be followed by Rent Controller(s) and Rent Control Tribunal.

(1)The Rent Controller and the Rent Control Tribunal shall not be bound by the procedure laid down by the Code of Civil Procedure, 1908 (Central Act 5 of 1908), but shall be guided by the principle of natural justice and subject to other provisions of this Act or the Rules made thereunder and shall have powers to regulate their own procedure, and for the purpose of discharging their functions under this Act they shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (Central Act 5 of 1908) while trying a suit or an appeal in respect of following matters, namely :-(a)summoning and enforcing the attendance of any person and examining him on oath;(b)requiring the discovery and production of documents;(c)reviewing its decision;(d)issuing commissions for the examination of witnesses or documents;(e)dismissing petition for default or deciding it ex-parte\(f)setting aside any order of dismissal of any petition for default or any order passed by it ex-parte;(g)bringing legal representatives on record; and(h)any other matter as may be prescribed.(2)Rent Control Tribunal shall not grant any adjournment without written application and recording the reasons therefor in writing.(3)Any proceeding before the Rent Control Tribunal or Rent Controller shall be deemed to be a judicial proceeding within the meaning of Sections 193 and 228 and for the purpose of Section 196 of the Indian Penal Code, 1860 (Central Act 45 of 1860) and the Rent Controller shall be deemed to be a Civil Court for the purposes of Section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).

11. Execution of the Order.

(1)The Rent Controller shall, on application of any party, execute, in the manner prescribed, a final order or any other order passed under this Act by adopting any one or more of the following modes, namely ;-(a)attachment and sale of the movable or immovable property of the opposite party;(b)arrest and detention of the opposite party;(c)attachment of any one or more bank accounts of the opposite party and satisfaction of the amount of order to be paid from such

account;(d)attachment of salary and allowance of a Government Servant or employee of any Nationalized Bank, Local Authority, Corporation, Government Company;(e)appointing any advocate as Commissioner on such remuneration as may be fixed or deputing any officer of the Tribunal or local administration or local body for execution of the order;(f)delivery of possession of the premises to the applicant.(2)The Controller may, in order to execute the final order or any other order passed under this Act require the help from the local administration or local body or the police.(3)If the tenant does not vacate the premises within three months of the date of issue of certificate for recovery of the possession, he shall be liable, from the date of issue of certificate for recovery of possession to pay mesne profits at the rate of 2 times the rent in case of accommodations let out for residential purposes, at the rate of 3 times the rent in case of accommodations let out for commercial purposes and at the rate of 3 times the rent in case certificate for recovery of immediate possession has been issued.(4)The Rent Controller shall conduct the execution proceedings in relation to a final order or any other order passed under this Act in summary manner and dispose of the application for execution made under this section within forty five days from the date of service of notice on opposite party.Explanation. - Filing of an appeal or other proceeding against the order of issue of certificate for recovery of possession or immediate possession will not save the tenant from his liability to pay mesne-profits, at the rates specified under sub-section (3), unless specifically ordered otherwise by the Appellate Rent Controller or the Court before which such an order is under challenge and if the order of issue of recovery certificate is finally maintained, the tenant shall be liable to pay mesne-profits at the rates specified under sub-section (3) from the date on which the recovery certificate was initially issued.

12. Rights and Obligations of Landlords and Tenants.

(1)Every tenant shall have rights according to Schedule 1. The Tribunal and Rent Controller(s) shall act at all times to secure to the tenant these rights.(2)Every landlord shall have rights according to Schedule 2. The Tribunal and Rent Controller shall act at all times to secure to the landlord these rights :Provided that-(a)In case of any clash of interests of the landlord and the tenant, and/or any point of doubt in respect of matters relating to rent, the benefit thereof shall be granted to the tenant.(b)In case of any clash of interests of the landlord and the tenant, and/or any point of doubt in respect of matters relating to returning possession of the accommodation to the tenant, benefit thereof shall be granted to the landlord.(3)Every landlord shall have obligations according to Schedule 3. The Tribunal and Rent Controller(s) shall act at all times to enforce upon the landlord these obligations.(4)Every tenant shall have obligations according to Schedule 4. The Tribunal and Rent Controller(s) shall act at all times to enforce upon the tenant these obligations.(5)Any willful attempt or act by the landlord to undermine or deny to the tenant the rights available to him in terms of Schedule 1 shall constitute an offence under this Act, punishable with fine not exceeding Rs. 5,000 or simple imprisonment for a period not exceeding three months or both.(6)Any willful attempt or act by the tenant to undermine or deny to the landlord the rights available to him in terms of Schedule 2 shall constitute an offence under this Act, punishable with fine not exceeding Rs. 5,000 or simple imprisonment for a period not exceeding three months or both.(7)Any attempt by the landlord to neglect for unsubstantial and/or insufficient reasons the obligations enjoined upon him in terms of Schedule 3 shall constitute an offence under this Act, punishable with fine not exceeding Rs. 5,000 or simple imprisonment for a period not exceeding three months or

both.(8)Any attempt by the tenant to neglect for unsubstantial and/or insufficient reasons the obligations enjoined upon him in terms of Schedule 4 shall constitued an offence under this Act, punishable with fine not exceeding Rs. 5,000 or simple imprisonment for a period not exceeding three months or both.

13. Appeal.

(1)Notwithstanding anything to the contrary contained in this Act, a landlord and/or tenant aggrieved by any order of the Rent Controller shall have the right to appeal in the prescribed manner within the prescribed time to the Rent Control Tribunal.(2)Appeal against an order of the Rent Control Tribunal shall lie with the Supreme Court.

13A. [Power to make rules. [Added by C.G. Act No. 3 of 2015, dated 31.12.2014.]

(1)The State Government may, by notification in the Official Gazette, make Rules to carry out all or any of the purposes of this Act.(2)Every Rule made under this Act shall be laid as soon as may be after it is made before the House of the State Legislature while it is in session, for a total period of thirty days, which may be comprised in one session or two or more successive sessions and if, before the expiry of the session in which it is so laid or the session immediately following, the House agrees in making any modification to the Rule or the House agrees that the Rule should not be made, as the case may be, and notifies such decision in the Official Gazette,the Rule shall from the date of publication of such notification have effect only in such modified form or be of no effect, as the case may be, however any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that Rule.]

14. Repeal and Savings.

(1)On this Act, becoming law, through notification in the Official Gazette, the Chhattisgarh Accommodation Control Act, 1961 (No. XLI of 1961) in its application to the State of Chhattisgarh is hereby repealed.(2)The repeal under sub-section (1) shall not affect the previous operation of this enactment so repealed and anything done or action taken or deemed to have been done or taken (including any appointment or delegation made, notification, order, direction or notice issued, or rules made), by or under the provisions of the repealed enactment shall, so far as it is not inconsistent with provisions of this Act, be deemed to have been done or taken under the provisions of this Act and shall continue in force unless and until suspended by anything done or any action taken under this Act.

Schedule 1

[See Section 12 (1) of the Act]Tenant's Rights available under the Act

Rights

S. No.	
1.	Right to receive, at the commencement oftenancy, a copy of the agreement.
2.	Right to receive receipt against payments madeto the landlord, either by way of security deposit, rent or anyother.
3.	Right to receive accommodation in a good andtenantable state before occupation.
4.	Right to enjoy quiet possession of theaccommodation, subject to regular payment of rent, and subjectto use of the accommodation for the purpose(s) for which it wasleased. Provided in the event of death or mental incapacitation of the tenant, his widow/wife shall automaticallybe deemed to be the tenant, subject to her endorsing, through asupplemental agreement, to take upon herself, the rights andobligations contained in the agreement executed by her husband.
5.	Right to all facilities and amenities formingpart of the accommodation, in a working and functional manner.
6.	Right to routine annual upkeep and face lift ofthe accommodation by the landlord, or right to get the annualupkeep work done against reimbursement of actual expenses by thelandlord, subject to such reimbursement not exceeding onemonth's rent after every block of eleven months of occupancy.
7.	Guarantee against any willful cutting off ofessential supplies like water and electricity by the landlord orhis agent(s).
8.	Security of tenancy, subject to non-impingementupon the rights of the landlords included in Schedule 2.

Schedule 2

[See Section 12 (2) of the Act]Landlord's Rights available under the Act

S. No.	Rights
1.	Security of title over accommodation,irrespective of the period of the tenant's tenancy.
2.	Right to demand and receive security depositfor an amount not exceeding three months rent.
3.	Right to receive rent regularly on or beforethe due date, in the manner agreed to in the agreement.
4.	Right to receive annual increment in rentaccording to the Agreement, which rate shall not exceed 5% incases where monthly rent is Rs. 2000/- or less; and 10% in allother cases.
5.	Right to demand and receive amountscorresponding to any increase in the cost of utilities likeelectricity, water, etc. enjoyed by the tenant.
6.	Right to inspect the accommodation duringdaytime, with prior appointment of the tenant, in the presenceof the tenant or any male adult member of his family, known toreside with him.
7.	Right to add and/or improve and/or expandaccommodation and/or increase amenities. Provided, however, thatif the addition/expansion was done without concurrence of thetenant,

	the landlord shall not have right to enforce increasedrent.
8.	Right to undertake routine annual upkeep of theaccommodation at a time suitable to him, or, to allow to thetenant the option to do the routine annual upkeep of theaccommodation, against reimbursement of expenses, subject tosuch reimbursement not exceeding one month's rent.
9.	Right to make application to the RentController seeking revision in rent and/or security deposit atany point of time on justifiable and substantial grounds.
10.	Right to apply to the Rent Controller seekingfair compensation from the tenant for damages caused to theaccommodation, wilfully, negligently, or otherwise attributableto the tenant.
11.	Right to seek from the Rent Controller evictionof the tenant on the following grounds : (a) If the tenant is a habitual defaulter in payment of rentand/or other dues. (b) If the tenant causes, or allows to be caused, substantialdamage to the accommodation, for any reason whatsoever. (c) If the tenant uses the accommodation for purpose(s) otherthan that for which it was leased out. (d) If the tenant becomes a social nuisance. (e) If the tenant is convicted under any section of the IndianPenal Code. (f) For carrying out major renovation work which is not possiblewith the tenant housed in. (g) On 3 months notice to the tenant in writing, if theaccommodation is required for own occupation and/or occupationby any member of the family including spouse, parent(s), son(s),daughter, daughter(s)-in-law, son(s)-in-law. (h) On 6 months notice to the tenant in writing, without anyobligation to assign any reason, but on the condition that theaccommodation will not be leased out at a higher rent foratleast 12 months thereafter : Provided, however, that in case of the following specialcategories of landlords and/or their spouse desiring theaccommodation back for own use, the period of notice shall beone month: current or retired government servants, widows,personnel of the armed forces, persons coming to physical ormental handicap, and senior citizens (above the age of 65years).
12.	Right to receive back the accommodation at theend of the tenancy in a shape and condition as good as it was atthe start of tenancy, granting allowance for reasonableweathering and aging.

Schedule 3

[See Section 12 (3) of the Act]Landlord's obligations under the Act

S. No.	Obligations
1.	To admit a tenant only after executingagreement, duly notarized, as required under this Act.
2.	To file Information on[such proforma as may be prescribed] [Substituted 'Form C' by C.G. Act No. 3 of 2015, dated 31.12.2014.]before the localPolice Station within 7 days of admitting the tenant.

3.	To give proper receipt to the tenant againstall payments received.
4.	To allow the tenant quiet enjoyment of theaccommodation and all rights included in Schedule 1, so long ashe fulfills his obligations set forth in Schedule 4.
5.	To keep the accommodation and premises in astate of good and tenantable repair at all times.
6.	To dovetail the system for disposal of domesticgarbage to the system designed by the civic body and to explainthe system clearly to the tenant at the start of tenancy.
7.	To undertake with reasonable promptitude allmajor structural repairs attributable to defects in constructionand/or natural aging of the house.
8.	To provide, wherever allowed by the StateElectricity Board, a separate and exclusive meter to record theelectricity consumed by the tenant.
9.	Never to wilfully cut off essential supplieslike water and electricity to the accommodation, or to causesuch cut through another.
10.	Never to exercise right to enter accommodationfor inspection, in the absence of the tenant or when only femalemember(s) of the family are present and are objecting to suchentry.
11.	To undertake annual upkeep of theaccommodation, or to allow the tenant to do so by allowing himexpenses on actual basis, subject to a maximum amount equal toone month's rent.
12.	Never to adopt or threaten to adoptextra-judicial methods for eviction to pressure the tenant tovacate the accommodation.
13.	To refund security deposit to the outgoingtenant before closure of tenancy.

Schedule 4

[See Section 12 (4) of the Act]Tenant's obligations under the Act

S. No.	Obligations
1.	To acknowledge at all times the title of thelandlord over the accommodation, and to respect and honorwithout demur his rights as set forth in Schedule-2.
2.	To use the accommodation only for the purposefor which it was leased out to him.
3.	Never to sub-let any portion of theaccommodation, with or without monetary considerations, formallyor informally, with or without the permission of the landlord.
4.	To protect and safeguard the accommodation, andall electrical, sanitary and other fixtures forming part of theaccommodation.
5.	To attend to the minor, recurring replacementsand repairs as may be necessary from time to time, withoutexpecting reimbursement from the landlord.
6.	To keep the accommodation in a clean andhygienic state, and not to cause air, water and/or noisepollution in or around the accommodation, in a manner that hurtspeaceful coexistence.
7.	To dispose of garbage in accordance with thesystem designed by the municipality, and in no case to litter itoutside the accommodation and/or on to the road or other publicplace.
8.	To pay the security deposit, rent and otherdues fully and regularly in the manner settled with thelandlord.

9. To compensate the landlord for any damagecaused to the accommodation, wilfully or otherwise, except fornatural aging and/or weathering.

10. Never to become a social nuisance duringcurrency of the tenancy.

Explanation. - 'Social nuisance' means doing or causing to be done any or all of the following acts: drunken brawls, wife-bashing, prostitution, habitual late-night noisy socializing and/or otherwise creation of abnormal noise construed by the neighbourhood as disturbance, spitting in common facilities like staircase, storage of any hazardous stuff, storage of any stuff with offensive odor that fouls up the surrounding, or that abnormally invites pests, littering of garbage and/or letting loose waste water, spoiling the environment by doing or promoting defecation and/or any act that has a bad and damaging social effect on the immediate neighbourhood.